

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxxv.]



CHAPTER lxxv.

An Act to authorise the Kent Electric Power Company to raise additional capital and for other purposes. A.D. 1937.
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[6th July 1937.]

WHEREAS by the Kent Electric Power Act 1902 the Kent Electric Power Company (hereinafter called “the Company”) were incorporated and authorised to supply electricity subject to the provisions of that Act within the county of Kent other than the Isle of Thanet for the purposes and subject to the conditions and restrictions mentioned in that Act and by the Kent Electric Power Act 1906 and the Kent Electric Power Act 1913 further powers were conferred on the Company and other provisions were enacted with respect to their undertaking :

And whereas by the West Kent Electric Power Act 1909 and the East Kent Electric Power Act 1911 the powers of the Company under the said Acts of 1902 and 1906 within parts of their area of supply were respectively transferred to and vested in the West Kent Electric Company Limited and the South East Kent Electric Power Company Limited :

And whereas the share capital of the Company authorised by the said Act of 1902 was £750,000 divided into 750,000 shares of £1 each and by the said Act of 1913 225,018 shares (being partly preferred ordinary shares partly deferred ordinary shares and partly common ordinary shares) which had been issued were consolidated

A.D. 1937. — and converted into 64,300 shares of £1 each (called “converted ordinary shares”) and thereby the authorised share capital of the Company was reduced to £589,282 :

And whereas pursuant to the powers conferred on the Company by section 36 of the said Act of 1906 the Company have issued 56,770 shares of £1 each (known as “the priority shares”) entitled to a cumulative preferential dividend at the rate of 6 per centum per annum payable out of the net profits of the Company derived from that portion of the Company’s undertaking which is situate within a radius of fifteen miles from the Company’s power station at Frindsbury which existed until the year nineteen hundred and twenty-five :

And whereas since the passing of the said Act of 1913 the Company have issued 321,500 ordinary shares of £1 each and the present issued capital of the Company consists of—

56,770 6 per centum cumulative priority shares ;
64,300 converted ordinary shares ;
321,500 ordinary shares :

And whereas all of the said shares are fully paid up and the said converted ordinary shares rank in all respects *pari passu* with the said ordinary shares :

And whereas all of the priority shares are now held by the County of London Electric Supply Company Limited :

And whereas by the said Act of 1913 the borrowing powers of the Company were redefined and the total authorised loan capital of the Company under that Act is £249,994 of which £75,000 $4\frac{1}{2}$ per centum debenture stock has been issued :

And whereas since the year nineteen hundred and twenty-one the operations of the Company have been greatly extended and their expenditure on capital purposes up to the thirty-first December nineteen hundred and thirty-six exceeded by £1,084,089 the total amount which has been raised by the Company by the issue of shares and debenture stock such excess having been met as to £575,000 by temporary loans and as to the balance out of reserves :

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxv.]

And whereas the Central Electricity Board have decided that for the purposes of the South East England Electricity Scheme 1927 a new generating station must be erected in the eastern part of the area covered by that scheme as a selected station for the purposes of that scheme and have approved of the erection of the station by the Company on a site within the Company's area of supply forming part of Littlebrook Farm in the parish of Stone in the rural district of Dartford : A.D. 1937.
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And whereas the said board have intimated to the Company that the erection of the first section of the station is urgently required and the Electricity Commissioners under section 11 of the Electricity (Supply) Act 1919 have given their consent to the construction and establishment by the Company of the station on the said site : 9 & 10
Geo. 5.
c. 100.

And whereas for the purpose of enabling the Company to construct and equip the said station and to provide and lay main transmission lines therefrom and to provide for the said excess of the capital expenditure already incurred and to meet the increasing demand for supplies of electricity within their area of supply it is expedient that the authorised share and loan capital of the Company be increased as by this Act provided :

And whereas it is expedient that further powers be conferred on the Company as by this Act provided and that the other provisions of this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

GENERAL.

1.—(1) This Act may be cited as the Kent Electric Power Act 1937. Short and
collective
titles.

(2) The Kent Electric Power Act 1902 the Kent Electric Power Act 1906 the Kent Electric Power Act 1913 and this Act may be cited together as the Kent Electric Power Acts 1902 to 1937.

A.D. 1937.

Incorporation of
Companies
Clauses
Acts.8 & 9 Vict.
c. 16.26 & 27
Vict. c. 118.

2.—(1) The following Acts so far as applicable to the purposes of this Act and not inconsistent with or varied by the existing Acts or this Act are hereby incorporated with this Act :—

The Companies Clauses Consolidation Act 1845 as amended by subsequent Acts except sections 38 40 and 101 to 104;

The Companies Clauses Act 1863 as amended by subsequent Acts except sections 14 17 to 20 22 32 and 34 and Part IV.

(2) The sections of the said Acts of 1845 and 1863 which are so excepted from incorporation with this Act shall cease to be incorporated with any of the existing Acts or to apply to the Company and section 35 (Power to raise remaining capital as additional capital) of the Act of 1906 is hereby amended accordingly.

Interpreta-
tion.

3. In this Act unless the subject or context otherwise requires—

“ the Company ” means the Kent Electric Power Company;

“ the Act of 1902 ” “ the Act of 1906 ” and “ the Act of 1913 ” respectively mean the Kent Electric Power Acts of those respective years;

“ the existing Acts ” means the Act of 1902 the Act of 1906 and the Act of 1913;

“ the undertaking ” means the undertaking of the Company for the time being authorised;

“ the existing debenture stock ” means the debenture stock issued under the authority of the existing Acts and existing at the passing of this Act;

“ the priority shares ” means the fifty-six thousand seven hundred and seventy shares of one pound each issued by the Company under the powers of the Act of 1906 and constituted a separate class of shares by resolutions of the Company passed pursuant to section 36 (As to classes of shares and securities) of that Act;

“ the converted ordinary shares ” means the sixty-four thousand three hundred shares of one pound each into which the preferred ordinary shares deferred ordinary shares and common

ordinary shares issued by the Company before the passing of the Act of 1913 were converted by section 3 of that Act; A.D. 1937.
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“the existing ordinary shares” means the three hundred and twenty-one thousand five hundred shares of one pound each issued by the Company since the passing of the Act of 1913 under the powers of the existing Acts;

“the existing shares” means the priority shares the converted ordinary shares and the existing ordinary shares;

“the Littlebrook station” means the generating station to be constructed and established by the Company pursuant to the consent given by the Electricity Commissioners under section 11 of the Electricity (Supply) Act 1919 and dated the first day of January nineteen hundred and thirty-seven on lands in the parish of Stone in the rural district of Dartford situate on the south bank of the river Thames and forming part of the property known as Littlebrook Farm and includes all buildings works and plant to be provided on those lands for the purpose of or in connection with the generation of electricity on those lands;

“main transmission line” has the same meaning as in the Electricity (Supply) Act 1919;

“the directors” and “the secretary” respectively mean the directors and the secretary of the Company.

FINANCIAL.

4. The Company may subject to the provisions of Part II of the Companies Clauses Act 1863 (so far as incorporated with this Act) raise any additional capital not exceeding in the whole one million four hundred and ten thousand seven hundred and eighteen pounds nominal capital (making together with the reduced share capital authorised by the existing Acts the aggregate amount of two million pounds nominal capital) by the issue at their option of ordinary shares or stock or preference shares or stock or wholly or partially by any one or more of those modes Additional share capital.

A.D. 1937. — respectively but the Company shall not issue any share of less nominal amount than one pound nor shall any share vest in the person accepting it unless and until a sum not being less than one-fifth of the amount of the share shall have been paid in respect thereof.

Incidents of
new capital.

5. Any shares or stock created by the Company after the passing of this Act under the powers of the existing Acts and this Act may be created and issued with such priorities as to capital and with such fixed fluctuating contingent preferential perpetual terminable deferred or other dividend or interest of such rate or amount (limited or unlimited) and the holders thereof respectively shall be entitled and subject to such powers rights privileges and liabilities whether as to capital or dividend as the Company may determine.

Converted
ordinary
shares and
ordinary
shares to
form one
class.

6.—(1) The converted ordinary shares shall after the passing of this Act be designated ordinary shares.

(2) The converted ordinary shares the existing ordinary shares and all ordinary shares (other than preferred ordinary shares and deferred ordinary shares) issued by the Company after the passing of this Act shall for all purposes form part of one and the same class of ordinary capital.

Provisions
as to
converted
ordinary
shares.

7.—(1) The Company shall as soon as practicable after the passing of this Act call in the certificates of the converted ordinary shares and issue free of charge in exchange for those certificates to the respective holders thereof certificates of the same respective numbers of ordinary shares but no such holder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be exchanged or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof and shall have given such guarantee or indemnity in respect thereof as the directors may require.

(2) All transfers or other dispositions of any converted ordinary shares made after the passing of this Act but not registered prior to the issue to the holders thereof respectively of the certificates of ordinary shares to which those holders are respectively entitled under this Act shall notwithstanding anything in this

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxv.]

Act be valid and have due effect given to them respectively as transfers or dispositions of the same number of ordinary shares as the number of converted ordinary shares thereby expressed to be transferred or disposed of although the instrument transferring or disposing thereof shall describe the same as converted ordinary shares.

A.D. 1937.

(3) Any bequest of or any covenant or provision in any deed will or other instrument relating to any specific number of converted ordinary shares shall after the passing of this Act be held to apply to the same number of ordinary shares.

8.—(1) All resolutions passed by the Company under section 36 (As to classes of shares and securities) of the Act of 1906 constituting the priority shares or any of them a separate class of shares and allocating to those shares the profits of a particular portion of the undertaking are hereby rescinded but without prejudice to the creation and issue of those shares or any of them.

Priority
shares con-
verted into
preference
shares.

(2) Each of the priority shares is hereby converted into a preference share of one pound (nominal amount) which shall for all purposes be deemed to be issued accepted and fully paid up.

(3) The preference shares into which the priority shares are so converted are hereby vested in the respective holders of priority shares in substitution for those shares and shall be forthwith registered in the respective names of such holders in the books of the Company.

(4) The Company shall as soon as practicable after the passing of this Act call in the certificates of the priority shares and issue free of charge in exchange for those certificates to the respective holders thereof certificates of the same respective numbers of preference shares.

9.—(1) The preference shares into which the priority shares are converted by this Act shall be entitled to a cumulative preferential dividend at the rate of six per centum per annum payable on the first day of January and the first day of July in each year out of the profits of the undertaking in priority to any ordinary shares and stock and if the profits of any year are not sufficient to pay the said dividend the

Dividends
on substi-
tuted pre-
ference
shares.

A.D. 1937. — deficiency shall be made good out of any funds of the Company available for the purpose or out of the profits of any subsequent year.

(2) The said preference shares shall rank for dividend as on and from the first day of July nineteen hundred and thirty-seven and the first dividend thereon shall be payable on the first day of January nineteen hundred and thirty-eight. The priority shares shall cease to be entitled to any dividend in respect of any period after the thirtieth day of June nineteen hundred and thirty-seven.

Substituted
preference
shares
may be
exchanged
for other
shares.

10.—(1) The Company and any holder of any preference shares into which the priority shares are converted by this Act (in this section referred to as "substituted preference shares") may at any time enter into and carry into effect agreements for the issue by the Company to and the acceptance by such holder in exchange for the substituted preference shares held by him of other shares or of stock in the capital of the Company of such number or nominal amount and of such class as may be agreed.

(2) For the purpose of giving effect to any agreement entered into under subsection (1) of this section the directors may without further or other sanction or authority than is given by this subsection issue to the holder of any substituted preference shares such number or nominal amount of shares or stock and of such class as under the agreement are to be issued to him in exchange for his substituted preference shares and all shares or stock so issued shall be deemed to have been lawfully created by the Company in the exercise of their powers under the existing Acts and this Act of raising additional capital and to be fully paid up.

(3) All substituted preference shares for which other shares shall be issued in exchange pursuant to an agreement entered into under subsection (1) of this section shall be forthwith cancelled and extinguished and for the purpose of determining at any time what amount of the additional capital authorised by section 4 (Additional share capital) of this Act has been raised the substituted preference shares so cancelled and extinguished shall be deemed not to have been created or issued.

11.—(1) Subject to the provisions of subsection (2) of this section the Company may at such times in such manner and on such terms and conditions as they may think fit but as regards debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 (so far as incorporated with this Act) and of section 23 (Debenture stock) of the Act of 1902 raise for the purposes of the existing Acts and the general purposes of the undertaking either at their option by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or partly by one of those modes and partly by the other of them the following sums—

A.D. 1937.

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General
loan
capital.

- (i) in respect of the existing shares (including the six per centum cumulative preference shares into which the priority shares shall be converted pursuant to the foregoing provisions of this Act) any sum or sums not exceeding in the whole (together with the nominal amount of the existing debenture stock for the time being outstanding) two hundred and twenty-one thousand two hundred and eighty-five pounds; and
- (ii) in respect of any ordinary and preference shares and stock (of any class) issued after the passing of this Act any sum or sums not exceeding in the whole one-half of the total nominal amount of such shares and stock actually issued and accepted.

(2) For the purpose of determining the amount which may from time to time be borrowed by the Company under paragraph (ii) of subsection (1) of this section the shares and stock in the capital of the Company actually issued and accepted shall not be deemed to include—

- (i) any shares until one-half of the total nominal amount of those shares is paid up; or
- (ii) any stock until one-half of the total nominal amount of such stock is paid up; or
- (iii) any shares or stock unless such shares or stock have been issued and accepted and to the extent aforesaid paid up bona fide and are held

A.D. 1937.
—

by the persons to whom the same were issued or their executors administrators successors or assigns and also in the case of shares that such persons or their executors administrators successors or assigns are legally liable for them.

Special loan
capital.

12. The Company (in addition to raising money by borrowing or by the creation and issue of debenture stock under the powers conferred by the last preceding section and independently of the exercise of those powers) may at such times in such manner and on such terms and conditions as they may think fit but as regards debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 (so far as incorporated with this Act) and of section 23 (Debenture stock) of the Act of 1902 raise for the purposes of the construction and equipment of the Littlebrook station and the acquisition by agreement of the site thereof and the provision and laying of main transmission lines therefrom either at their option by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or partly by one of those modes and partly by the other of them—

- (i) any sum or sums not exceeding in the whole two million five hundred thousand pounds; and
- (ii) with the consent of the Electricity Commissioners (which consent those commissioners are hereby authorised to give) such further sum or sums as in the opinion of those commissioners is or are from time to time required to be spent by the Company on the purposes aforesaid.

Repeal of
former loan
capital
powers.

13. The powers conferred on the Company by the two last preceding sections shall be in substitution for and not in addition to the powers conferred on the Company by the existing Acts of borrowing on mortgage of the undertaking and of creating and issuing debenture stock so far as those powers have not been exercised prior to the passing of this Act.

Appoint-
ment of
receiver.

14. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxxv.]

appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. A.D. 1937.
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15. Notwithstanding anything in the existing Acts or this Act or the Acts incorporated therewith respectively the Company may out of any money which they are by this Act authorised to raise pay and charge to capital account interest at such rate not exceeding (except with the consent of the Electricity Commissioners which consent those commissioners are hereby authorised to give) five per centum per annum as the directors may determine on the amount of any money raised by borrowing on mortgage or by the creation and issue of debenture stock under section 12 (Special loan capital) of this Act from the date of the borrowing or the issue of the debenture stock until the date when that section of the Littlebrook station for the construction and equipment whereof or for the acquisition of the site whereof the money was raised is brought into use for the generation of electricity or (as the case may be) the date when any main transmission line for the provision and laying whereof the money was raised is brought into use for the transmission of electricity. Power to pay interest on special loan capital out of capital.

16.—(1) In this section unless the context otherwise requires— Redeemable preference capital and debenture stock.

“stock” means and includes preference stock and debenture stock;

“preference stock” includes preference shares;

“issue” includes re-issue;

“redeemable stock” means any stock issued under the powers of this section so as to be redeemable;

“redeemed stock” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act and any redeemed stock :

A.D. 1937.

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Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of a general meeting of the Company.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit :

Provided that—

(a) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class which the Company are for the time being authorised to create except during any reasonable interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued ; and

(b) during such interval as aforesaid any preference stock so created or issued shall not be deemed to be stock actually issued and accepted for the purposes of section 11 (General loan capital) of this Act.

(4) The redemption of any preference stock issued so as to be redeemable shall not affect the validity of any mortgage or debenture stock of which the grant or issue by the Company was lawful in the circumstances existing at the date of such grant or issue.

(5) Redeemable stock shall bear such rate of dividend or interest and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine Provided that the terms and conditions of redemption upon which any redeemable

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxxv.]

stock is issued shall be stated in any offer by the Company of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock. A.D. 1937.
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17.—(1) Notwithstanding anything in the existing Acts or this Act or any Act incorporated therewith respectively the Company on any offer to the public of shares stock debenture stock mortgages or other securities which the Company are or may at any time be authorised to issue may pay a commission not exceeding (except with the consent of the Minister of Transport which consent that Minister is hereby authorised to give) five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for such shares stock debenture stock mortgages or other securities or procuring or agreeing to procure subscriptions therefor whether absolute or conditional if the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid are disclosed in the prospectus advertisement or other document of the Company inviting subscriptions or offers for such shares stock debenture stock mortgages or other securities. Power to pay commissions.

(2) Nothing in this section shall affect any power of the Company to pay brokerage.

18.—(1) The Company may from time to time set aside out of revenue (after providing for the payment of interest or dividends on any mortgages debenture stock and preference capital of the Company and for other fixed charges and obligations) such sums as they may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable stock issued pursuant to the provisions of section 16 (Redeemable preference capital and debenture stock) of this Act and which under the conditions of the issue thereof is redeemable wholly or partly in cash and the directors may invest any sums so set apart and the income therefrom in any securities in which trustees are for the time being by law authorised to invest trust funds or in any other securities in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company. Redemption fund.

A.D. 1937.

(2) All sums so set apart and the investments representing those sums may be applied to the redemption at maturity of any redeemable stock for the redemption of which they have been set apart or may if and whenever the directors think fit be applied in the purchase of any redeemable stock at a price not exceeding the redemption price or of any irredeemable debenture stock pursuant to the powers conferred by the next succeeding section of this Act or to any other purposes to which capital is properly applicable Any redeemable stock purchased under this subsection shall be treated as redeemed.

(3) In this section the expression "redeemable stock" has the same meaning as in section 16 (Redeemable preference capital and debenture stock) of this Act.

Power to
purchase
irredeem-
able debenture
stock.

19.—(1) The Company may at any time and from time to time purchase by agreement any irredeemable debenture stock issued under any Act relating to the Company (including the existing debenture stock) and for that purpose may apply any money for the time being in their hands which they are entitled to apply to capital purposes (including any money or investments for the time being forming part of any fund formed under the last preceding section of this Act) and also subject to the sanction of a resolution of a general meeting any other money or funds for the time being in their hands.

(2) Any debenture stock purchased under the provisions of this section may at the option of the directors be retained by the Company and registered in the name of the Company or be at any time cancelled and extinguished.

(3) If any debenture stock is purchased by the Company under the provisions of this section and is thereafter cancelled and extinguished the Company may subject to the provisions of Part III of the Companies Clauses Act 1863 (so far as incorporated with this Act) and of section 23 (Debenture stock) of the Act of 1902 re-issue that debenture stock or issue in lieu thereof other debenture stock not exceeding the nominal amount of the debenture stock so cancelled and extinguished.

As to disposal of
share
capital.

20. Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 the directors may when issuing any portion of the share capital which has been

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxxv.]

lawfully created by the Company but not previously issued dispose of all or any of the shares or stock representing such portion of the share capital at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

A.D. 1937.

21. Notwithstanding anything in any Act relating to the Company the directors may from time to time by virtue of this section and without further or other sanction or authority exercise any powers for the time being vested in the Company of borrowing and reborrowing on mortgage or temporary loan and of creating and issuing debenture stock.

Exercise of
borrowing
powers by
directors.

22. The following sections of the Act of 1906 shall so far as the same are applicable extend and apply to and for the purposes of this Act as if those sections were re-enacted in this Act with any necessary alterations and as if any references to shares and share capital in those sections were references to ordinary and preference shares and stock of any class:—

Application
of sections
of Act of
1906.

Section 41 (Power to issue share warrants and debenture stock certificates to bearer);

Section 42 (Effect of share warrant and debenture stock certificate);

Section 43 (Entries in register on issue of share warrant or debenture stock certificate);

Section 44 (Registration of share and debenture stock on surrender of warrant or certificate);

Section 45 (As to rights of holders of share warrants to bearer);

Section 46 (On what conditions holders of share warrants may vote);

Section 47 (Certificates of deposit);

Section 48 (Share warrants to be produced);

Section 49 (As to notices to holders of share warrants);

A.D. 1937.
—

Section 50 (Provision in case of applications to Parliament affecting rights of holders of debenture stock);

Section 51 (Loss or destruction of share warrant or debenture stock certificate to bearer or coupon);

Section 53 (Endorsement of provisions on share warrants and debenture stock certificates to bearer).

Application
of moneys.

23. All money raised by the Company under this Act whether by shares stock or debenture stock or by borrowing shall be applied only to the purposes of the undertaking to which capital is properly applicable Provided that all money raised under section 12 (Special loan capital) of this Act shall be applied only to the purposes mentioned in that section.

Company
not bound
to regard
trusts.

24. The Company shall not be bound to see to the execution of any trust whether express implied or constructive to which any stock mortgages or debenture stock issued or granted by the Company may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any such stock mortgages or debenture stock as if such stock mortgages or debenture stock were shares to which that section applies.

ADMINISTRATIVE AND MISCELLANEOUS.

Annual
meetings.

25. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the ordinary meetings of the Company shall (except as the Company may from time to time by a resolution of a general meeting otherwise determine) be held once only in each year in such month and at such time and place as the directors may from time to time determine.

Interim
dividends
and annual
accounts.

26. If and so long as the ordinary meetings of the Company shall be held once only in each year—

(a) it shall be lawful for the directors without the sanction or direction of a general meeting to pay in any year an interim half-yearly dividend on the capital of the Company out of the funds and revenues of the Company applicable to the payment of dividends; and

(b) section 116 of the Companies Clauses A.D. 1937.
Consolidation Act 1845 shall in its application
to the Company have effect as if the words
“preceding period of twelve months” were
substituted therein for the words “preceding
half-year.”

27. Any meeting of the Company whether ordinary or extraordinary may (if the directors so determine) be convened by notice delivered at or sent by post to the registered address or other known address of each holder of shares and stock in the capital of the Company entitled to be convened to the meeting not less than six clear days before the date of the meeting. In proving that any such notice has been posted it shall be sufficient to prove that the notice was properly addressed and put into the post and prepaid not later than the time hereby prescribed.

Notice of
general
meetings.

28.—(1) At all general meetings of the Company (whether ordinary or extraordinary) every holder of ordinary capital and of any preference capital to which voting rights are attached by the resolution creating such capital shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each pound in the nominal value of the capital held by him. Provided that no such holder shall be entitled to vote at any meeting in respect of any share or stock on which any call remains unpaid.

Voting at
general
meetings.

(2) The Company may attach to any shares or stock to which a preferential dividend or interest or a right to priority in the distribution of assets shall be assigned such conditions as to voting qualification or otherwise as they think fit to declare before issuing the shares or stock but except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any such shares or stock.

(3) Section 61 (As to appointment of proxies) of the Act of 1906 shall have effect as if the word “shareholder” in that section included the holder of any ordinary or preference shares or stock of any class in the capital of the Company.

(4) Section 62 (Joint holders) of the Act of 1906 shall have effect as if the word “share” in that section

A.D. 1937. — included any ordinary or preference shares or stock of any class in the capital of the Company.

Qualifica-
tion of
directors.

29. The qualification of a director shall be the possession in his own right of ordinary or preference shares or stock of any class in the capital of the Company of a total nominal amount of one hundred and twenty-five pounds.

Register of
share-
holders
and share-
holders'
address
book.

30. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory on the Company—

- (a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by that Act to be entered in the register of shareholders and the shareholders' address book respectively; or
- (b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

Closing of
transfer
books.

31.—(1) The directors may close the register of transfers of shares or stock of any class for a period not exceeding fourteen days previous to the payment of any dividend on any such shares or stock and may close the register of transfers of debenture stock or mortgages of any class for a period not exceeding fourteen days previous to the payment of any interest on any such debenture stock or mortgages and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this section. Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published and circulating in the county of Kent.

(2) Any transfer of any shares stock debenture stock or mortgages lodged for registration with the Company while the register of transfers relating to shares stock debenture stock or mortgages of the same class is so closed shall as between the Company and the person claiming under the transfer but not otherwise be

[1 EDW. 8. &
1 GEO. 6.]

*Kent Electric Power
Act, 1937.*

[Ch. lxxv.]

considered as made subsequently to the payment of any such dividend or interest. A.D. 1937.

32.—(1) It shall be lawful for the Company at any ordinary meeting to elect one person or two persons or a firm of accountants qualified as mentioned in subsection (2) of this section as auditor or auditors of the accounts of the Company and any person or persons or firm so elected at any ordinary meeting shall hold office until the next ordinary meeting. Auditors.

(2) A person shall not be qualified to be elected an auditor of the accounts of the Company unless he be and a firm of accountants shall not be so qualified unless every member of the firm be a member of one or more of the bodies named in subsection (3) (b) of section 239 of the Local Government Act 1933 and it shall not be necessary for such auditor or the members of such firm to hold any shares or stock in the capital of the Company. 23 & 24
Geo. 5. c. 51.

(3) If any auditor of the Company die or resign the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

33. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary. Determina-
tion of
remunera-
tion of
secretary.

34. Notwithstanding anything in any Act relating to the Company any contract or agreement required to be in writing and not under seal may be signed on behalf of the Company by the secretary or other person appointed in that behalf by the directors. As to
contracts.

35. Save as is otherwise by any Act or Order from time to time relating to the Company expressly provided all offences against and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or Order may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of
penalties &c.

36. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the Company whether provision is Recovery of
demands.

A.D. 1937. — or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort.

Repeal.

37.—(1) The following sections of the existing Acts are hereby repealed :—

Act of 1902—

Section 22 (For appointment of a receiver);

Section 27 (Qualification of directors).

Act of 1906—

Section 35 (Power to raise remaining capital as additional capital);

Section 36 (As to classes of shares and securities);

Section 37 (Power to pay commissions);

Section 52 (Trustees unless expressly authorised not empowered to hold share warrant or debenture stock certificates to bearer);

Section 63 (Common seal);

Section 64 (Recovery of demands in county court).

Act of 1913—

Section 5 (Company may issue further debentures).

(2) Paragraph (10) of section 3 (Reduction and conversion of capital) of the Act of 1913 is also hereby repealed.

Costs of
Act.

38. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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